

Stereo H.C.J.D.A.38
JUDGMENT SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

Writ Petition No. 7098 of 2014

Tehsil Municipal Administration

Petitioner

versus

Punjab Labour Appellate Tribunal-II, Multan

Respondents

JUDGMENT

Date of hearing **22.02.2018**

Petitioner by	Mehar Irshad Ahmad Arain, Advocate.
Respondents by	Mr. Muhammad Ashfaq Thaheem, Advocate.

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MUZAMIL AKHTAR SHABIR, J.- Through this single judgment, I intend to decide this petition alongwith WP No.383 of 2015 as common question of law and fact is involved in both these petitions.

2. The petitioner TMA has challenged the judgment of the Punjab Labour Appellate, Tribunal No.II, Multan dated 03.02.2014 whereby order of the Punjab Labour Court No.11, Multan dated 23.05.2013 was upheld.

3. The brief facts of the case are that the respondent Nos.3 to 17 ("**respondents**") were appointed in the petitioner/TMA in different categories on work charge basis. Under the contract their services were liable to be terminated at any time. After completion of three or more

continuous months of service, respondents employees issued grievance notice to the petitioner TMA for regularization. Thereafter they filed a grievance petition before Labour Court which was allowed vide order dated 23.05.2013 with the result that their services were regularized. Feeling aggrieved of the said order, petitioner/TMA preferred appeals before the Punjab Labour Appellate Tribunal which were dismissed vide judgment dated 03.02.2014. Through instant petition, the petitioner has challenged both the afore referred decisions.

3. Learned counsel for the petitioner submits that the respondents were appointed on work charge basis for 89 days from time to time and on expiry of 89 days, their services automatically ceased to have effect and there is no continuity of service so it could not be regularized. Further submits that the petitioner is a Semi-Government autonomous body and is not an Industrial Organization and if respondents have any grievance against the orders passed by the petitioner, they should approach the appellate authority under Appeal Rules, 2002 of the Punjab Local Government, Ordinance, 2001. Besides a contract employee cannot be regularized. In support of his contention, he relies upon Tehsil Municipal Officer, TMA Kahuta and another vs. Gul Fraz Khan (2013 SCMR 13), Federation of Pakistan through Secretary Law, Justice and Parliamentary Affairs vs. Muhammad Azam Chatha (2013 SCMR 120). Adds that in order to approach the Labour Court, grievance notice was to be issued within three months of the date of grievance. In this regard, reliance has been placed on Khushal Khan vs. MCB limited and others (2002 SCMR 943).

4. On the other hand, learned counsel for the respondents submits that services of the respondents were regularized by both the courts below after considering the evidence produced by the respondents which fact confirms the continuous service of the respondents for more than 09 months without any break. Submits that nature of duties of the respondents is also permanent in nature. Relies upon Secretary, Irrigation and Power Department Government of Punjab, Labour and others vs. Muhammad Akhtar and others (2009 SCMR 320), Managing Director, Sui Southern Gas Company Ltd, Karachi vs. Ghulam Abbas and others (PLD 2003 SC 724), Province of Punjab through Secretary Communication and Works Department and others vs. Ahmad Hussain (2013 SCMR 1547) and Ikram Bari and 524 others vs. National Bank of Pakistan through President and another (2005 SCMR 100).

5. Heard. Record perused.

6. It is an admitted fact that all the respondents are working in the petitioner TMA for more than 09 months and this fact has been proved from the evidence produced before the Labour Court. Both the courts below have passed the impugned judgments on the basis that there is continuous service on credit of the respondents. The claim of the petitioner TMA is that respondents are not entitled to be declared permanent employees on the basis of law laid down by the Hon'ble Supreme Court in case reported as "2013 SCMR 13" and "2013 SCMR 120" (Supra). I have minutely gone through the judgments referred by the learned counsel for the petitioner which are not applicable to the

facts of the present case. In case reported as “2013 SCMR 13” the respondents filed writ petitions wherein they were employed on work charge basis and, therefore, the services were not declared as regular employees of the petitioner TMA. The relevant portion of the said judgment is reproduced below:

“The respondent’s employment whether with the PHED or with the petitioners remained on work charge basis. He was never appointed as regular employee and his employment as work charge, whatever its length of period, would not accord him the status of regular employee.”

Whereas in the present case the respondents employees approached the Labour Court with the request to declare them as permanent employees. The Labour Court after recording evidence reached the conclusion that in view of nature of duties which were of permanent nature and keeping in view the length of continuous service, the respondents were held entitled to be declared permanent employees/regularized in service. Therefore, the above case law is not applicable to the facts of present case. The other case law relied upon by the petitioner “2013 SCMR 120” also arises from the writ jurisdiction and it was held in that case that contract employee in case of premature termination of contract can seek damages for unexpired period of their services whereas in the present case no issue of termination is involved and therefore, no question of damages arises, hence, the facts of the said case are distinguishable.

7. In similar circumstances, the Hon’ble Supreme Court in Punjab Seed Corporation and 2 others vs. Punjab Labour Appellate Tribunal & 2 others (1996 SCMR 1947) declared the employee of the said

corporation as permanent and held that he could not be terminated without issuing show cause notice.

8. Even otherwise, a finding of fact having been recorded by the Labour Court and upheld by the Punjab Labour Appellate Tribunal on the basis of reliable evidence that the petitioners are working against posts of permanent nature for a continuous period of more than nine months entitles them to regularization, cannot be interfered while dealing with the constitutional jurisdiction of this Court without there being any illegality, jurisdictional defect or perversity, which is not forthcoming on the record. Besides the regularization of such an employee is admissible under the Industrial Relations Ordinance/Act, hence the findings of the courts below are upheld.

9. For what has been discussed above, there is no ground for interference in the conclusions arrived at by both the courts below. Both the petitions being devoid of any merit are hereby *dismissed*.

(Muzamil Akhtar Shabir)
Judge

Naveed*
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